BC673403 BC673403

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: BC673403 Hearing Date: August 13, 2026 Dept: 512

HEARING DATE: Thurs., August 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Camp
v. LA Unified School District

CASE NUMBER: BC673403

NOTICE: OK

PROCEEDINGS: MOTION
TO STRIKE OR TAX COSTS

MOVING PARTY: Plaintiff
Jason Camp

RESP. PARTY: Defendant Los Angeles Unified School
District

MOTION TO STRIKE OR TAX COSTS

(CRC, rule 3.1700)

TENTATIVE RULING:

Plaintiff Jason Camp's Motion to
Strike or Tax Costs and Amend Judgment Awarding Costs is GRANTED in part and
DENIED in part.

The Motion’s request to strike the
Memorandum of Costs filed on March 26, 2026, is GRANTED. The Memorandum of Costs filed on March 26, 2026, is STRICKEN.

The Motion’s request to strike the
Appellate Memorandum of Costs filed on August 7, 2025, is GRANTED. The Memorandum of Costs filed on August 7, 2025, is STRICKEN.

The Motion’s request to amend the
judgment is DENIED.

Moving party
is ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on May 15, 2026 [ ] Late [ ] None

REPLY: Filed on May
21, 2026 [ ]
Late [ ] None

ANALYSIS:

I.
Background

On November 8, 2021, the jury found in
favor of Plaintiff Jason Camp (“Plaintiff”) on his whistleblower retaliation claim and for Defendant Los Angeles Unified School District (“Defendant”) on a Fair Employment and Housing Act (FEHA) claim. Notably, the operative complaint

at the time of the jury verdict was Plaintiff's Fourth Amended Complaint filed in November 2018.

On March 25, 2025, the Second District Court of Appeal, in an unpublished decision held as follows: "The judgment is reversed as to the section 1102.5 cause of action, the order denying defendant's motion for JNOV is reversed, and the orders awarding plaintiff attorney fees and costs are vacated. The orders denying plaintiff's motions for a new trial on the FEHA cause of action and for sanctions are affirmed. On remand, the trial court is directed to enter a new and different order granting defendant's JNOV motion on the section 1102.5 claim and to enter judgment for defendant accordingly. Defendant's appeal of the order denying in part its motion to tax costs is dismissed as moot. Defendant is awarded costs on appeal." (Camp v. Los Angeles Unified School District, Case No. B318925.)

On August 7, 2025, Defendant filed a Memorandum of Costs on Appeal ("Appellate Costs Memo").

On October 16, 2025, the Court granted Defendant's Motion for Judgment Notwithstanding the Verdict in accordance with the March 25, 2025, Appellate Opinion, Remittitur and directions on remand. (10/16/25 Order, Judgment.) The Clerk's Certificate of Mailing of the Final Order was issued the same day.

On November 5, 2025, the Court granted in part Plaintiff's Ex Parte Application for Order Vacating the Judgment Notwithstanding the Verdict in Favor of the Los Angeles Unified School District and For a Stay Until the Proceedings on Plaintiff Jason Camp's Petition for Writ of Certiorari are Completed. (11/5/25 Order.) The Court "stay[ed] enforcement of the judgment until the proceedings before the USSC are concluded." (11/5/25 Order.)

On March 26, 2026, the Court granted Defendant's Ex Parte Application for Order Lifting Stay of Proceedings. (3/26/26 Order.)

That same day, Defendant filed a Memorandum of Costs ("Costs Memo").

On April 1, 2026, Plaintiff filed the

instant Motion to Strike or Tax Costs and Amend Judgment Awarding Costs (the "Motion").

On May 15, 2026, Defendant filed an Opposition.

On May 21, 2026, Plaintiff filed a Reply.

On May 29, 2026, the Court continued the Motion to allow for further briefing. (5/29/26 Order.) The Court ordered Defendant to file a supplemental reply by 6/12/26 and Plaintiff to file an opposition by 6/18/26. (5/29/26 Order.)

On June 12, 2026, Defendant filed a Supplemental Brief on Appellate Costs.

On June 18, 2026, Plaintiff filed a Response to the Supplemental Brief and a request for judicial notice.

On June 29, 2026, the Court continued the hearing on the Motion. (6/29/26 Order.)

On July 30, 2026, the Court granted the parties' stipulation to continue the hearing on the Motion to August 13, 2026. (7/30/26 Stip. & Order.)

On July 31, 2026, Defendant filed and served Notice of Ruling.

II. Request for Judicial Notice

In support of the Response to the Supplemental Brief, Plaintiff requests the Court take judicial notice of (1) the Complaint filed in Neeble-Diamond v. Hotel California by the Sea, LLC (2024) 99 Cal.App.5th 551, and (2) a copy of the payment receipt Plaintiff's counsel incurred for obtaining a copy of the formal Complaint in Neeble-Diamond. (Supp. Brief, RJN, pp. 1-2, Exhs. A-B.)

The Court GRANTS the first request
pursuant to Evidence Code section 452, subdivision (d) and DENIES the second request.

III.
Legal
Standard & Discussion

A. Costs Memo

Plaintiff "moves
to strike or to tax costs and amend the judgment awarding costs because the Memorandum of Costs submitted by defendant Los Angeles Unified School District is untimely, procedurally improper, and substantively impermissible." (Motion, p. 1.) Specifically, Plaintiff contends the Costs Memo was filed far after the deadline to file expired under the California Rules of Court; Defendant improperly failed to request costs in a FEHA action by failing to acquire a finding by the Court in conformance with Government Code section 12965; and Defendant is precluded from recovering costs for the Labor Code claim as the Labor Code cause of action was so entwined with the FEHA cause of action that "it is impossible to distinguish costs incurred on only by the FEHA cause of action." (Motion, pp. 1-6.) Finally, Plaintiff contends the Costs Memo overreaches in its requests for expert witness fees, deposition costs, service of process fees, court reporter fees, and other fees, including trial tech fees and mediation fees. (Motion, pp. 6-10.)

In Opposition, Defendant contends the
Costs Memo is timely filed and the Judgment expressly permitted Defendant to seek costs pursuant to a Costs Memo. (Opp., pp. ii, 1.) Defendant contends the Costs Memo, which was filed on the same day that the stay was lifted in this matter, was timely given that the stay made it so Defendant could not file a Costs Memo by the deadline of 11/5/25 or while the stay was pending. (Opp., pp. 4-5.) Further, Defendant contends that all the costs in the Costs Memo are reasonable and should be awarded. (Opp., pp. 2-9.)

In Reply, Plaintiff asserts the stay
of "enforcement of judgment" issued by the trial court did not toll Defendant's deadline to file a Costs Memo and thus the Costs Memo is untimely. (Reply, pp. 2-3.) Even if the stay tolled the deadline, Defendant still filed the Costs

Memo 47 days after the U.S. Supreme Court denied certiorari on January 12, 2026. (Reply, pp. 3-4.) Further, Plaintiff reiterates that Defendant's failure to file a motion for discretionary costs given the FEHA cause of action involved in the action waived Defendant's entitlement to an award of costs. (Reply, pp. 4-5.) Finally, Plaintiff emphasizes that Defendant has not established any statutory basis for the challenged costs. (Reply, pp. 5-8.)

California Rules of Court, Rule 3.1700(a)(1) provides as follows: "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case."

California Rules of Court, Rule 3.1700(b)(3) provides as follows: "The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days."

Here, judgment was entered and notice of entry of judgment was served on October 16, 2025. As such, Defendant had 15 days plus 5 days for mailing to file a Costs Memo, thus making the deadline November 5, 2025. (Cal. Rules of Court, rule 3.1700, subd. (a).) However, Defendant failed to file the Costs Memo until March 26, 2026. The parties do not submit any argument or evidence of an agreement to extend the time to file a Costs Memo. (Cal. Rules of Court, rule 3.1700, subd. (b).) Further, even if the Court elected to grant a 30-day extension per California Rules of Court, Rule 3.1700, subdivision (b)(3), the deadline to file a Costs Memo would have been December 5, 2025, which was months before the Costs Memo was filed on March 26, 2026.

Accordingly, the Costs Memo is untimely.

To the extent Defendant contends the stay of “enforcement of judgment” issued by the Court on November 5, 2025, tolls the deadline to file a Costs Memo (Opp., pp. 4-5; 11/5/25 Order), Defendant fails to provide any legal authority to support this request. Furthermore, the Court does not find that the stay issued in this matter prevented papers such as the Costs Memo from being filed (see e.g., Mann v. Cracchiolo (1985) 38 Cal.3d 18), and Defendant fails to present any legal authority demonstrating otherwise. Finally, the Court does not find that Defendant’s subjective and unsupported belief that a Costs Memo could not be filed pending the stay (see Opp., pp. 4-5, Goldsmith Decl., p. 3) without more is a sufficient showing justifying the extensive delay in filing the Costs Memo.

“ ‘The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory.’ ” (Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426.)

Therefore, the Court GRANTS the Motion as to the request to strike the Costs Memo and strikes the 3/26/26 Costs Memo.

As to Plaintiff’s cursory request to amend the judgment to remove its reference to costs, the Court does not find that amending the judgment to strike paragraph 5 is adequately supported, necessary, or appropriate in the instant circumstances and by way of the instant Motion.

B. Appellate Costs Memo

Plaintiff, for the first time in the Reply, asserts the Appellate Costs Memo is defective in addition to the Costs Memo. (Reply, p. 8.) Specifically, Plaintiff contends that Defendant was required to “move for fees and segregate costs between the” FEHA and non-FEHA claims; however, Defendant merely filed a cost memorandum for appellate costs. (Reply, p. 8.) Plaintiff contends that a cost memorandum alone is “an ineffective means of seeking costs in a FEHA case,” and relies on Neeble-Diamond v. Hotel California By the Sea, LLC (2024) 99 Cal.App.5th 551 to make this assertion. (Reply, p. 8.)

The Court was previously not inclined to address this argument as it was improperly raised for the first time in a

Reply brief; however, the parties orally stipulated at the hearing on the Motion that the Court could address this issue following supplemental briefing on the issue by the parties. (See 5/29/26 Order.) A such, the Court proceeds to address the issue and the supplemental briefing submitted by the parties.

In a Supplemental Brief, Defendant contends that Plaintiff's reliance on Neeble-Diamond is inapt as the case "does not give the full picture when there are FEHA and non-FEHA claims." (Supp. Brief, pp. 3-4.) Rather, Defendant contends Roman v. BRE Properties, Inc. (2015) 237 Cal.App.4th 1040 is more applicable to the instant circumstances and allows for a costs award as a matter of right under Code of Civil Procedure section 1032. (See Supp. Brief, p. 4.) Defendant highlights that this same approach was followed in Moreno v. Bassi (2021) 65 Cal.App.5th 244. (Supp. Brief, p. 4.) Finally, Defendant contends there "is no case authority that would prevent this Court from apportioning costs on appeal between the Section 1102.5 and the FEHA Claim. The Court of Appeal consolidated the appeals of Plaintiff and Defendant, and as the Court of Appeal decision indicates, only a small portion of the argument and discussion was devoted to the FEHA argument on appeal. Therefore, it would be reasonable to apportion 10% of the Court of Appeal Cost to the FEHA issue on appeal." (Supp. Brief, p. 5.)

In a response to the Supplemental Brief, Plaintiff states that Defendant has failed to provide any authority modifying Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, which holds in pertinent part: " 'An appellate court may not award costs or fees on appeal to a prevailing FEHA defendant without first determining that the plaintiff's action was frivolous, unreasonable, or groundless when brought, or that the plaintiff continued to litigate after it clearly became so.' " (Id., at pp. 950, 951; Supp. Response, p. 2.) Further, Plaintiff states Defendant's attempts to distinguish Neeble-Diamond is misleading and meritless as the facts of Neeble-Diamond parallel this case, and the statutory bar to cost recovery absent a showing of frivolousness for FEHA claims applies "whether the FEHA claims stand alone or are intertwined with non-FEHA claims." (Supp. Response, p. 4.) Finally, Plaintiff states Defendant's "request that the court apportion costs and award 90% of appellate expenses, after failing to file the required motion and without submitting any factual evidence supporting apportionment, is without merit." (Supp. Response, p. 4.)

Here, the Court finds the Appellate

Costs Memo, alone, is insufficient for an award of costs in a case that involves both FEHA and non-FEHA claims. The Court finds that the case law relied upon by both parties supports this conclusion.

In Neeble-Diamond, the Fourth District Court of Appeal found that, where the complaint alleged FEHA causes of action, a cost memorandum alone was "an ineffective means of seeking costs in this FEHA case." (Neeble-Diamond, supra, 99 Cal.App.5th at pp. 557-558.) The appellate court found that the language of Government Code section 12965, which governs cost awards for FEHA claims, requires a trial court's discretion in issuing the cost award. (Id., at p. 557.) As such, the appellate court found that defendant, the prevailing party, failed to file the necessary motion for an award of these discretionary costs and thus forfeited any such claim. (Id., at pp. 557-558.)

In Roman, the Second District Court of Appeal held that the "inclusion of additional theories of liability does not divest the trial court of its discretion in awarding costs to a prevailing FEHA defendant." (Roman, supra, 237 Cal.App.4th at p. 1058.) When ruling on a costs award in a case involving mixed FEHA and non-FEHA claims, the appellate court held that a trial court should apply Government Code section 12965's discretionary standard first to determine whether costs are awardable for the FEHA claims before awarding any mandatory costs for the non-FEHA claims. (See id., at pp. 1058-1061.)

In Moreno, the Fifth District Court of Appeal held the following:

In this case, plaintiff lost all the FEHA claims, lost some non-FEHA claims, and prevailed on some non-FEHA claims. In such a situation, the award of costs is governed by the interaction of section 1032 and Government Code section 12965, subdivision (b). We conclude Government Code section 12965, subdivision (b) bars plaintiff from recovering the costs caused solely by the inclusion of the FEHA causes of action in this lawsuit. The other costs incurred in the lawsuit are recoverable under section 1032, subject to the discretionary exception in section 1033, subdivision (a). On remand, the trial court must determine which cost items, if any, are barred by Government Code section 12965, subdivision (b) before entering an award in accordance with sections 1032 and 1033.

(Id., at p. 249.)

When viewing these cases together, the Court finds that a trial court may allocate costs between FEHA and non-FEHA related claims, and non-FEHA claims do not require the same showing as required for costs award on FEHA claims. (See Roman, supra, 237 Cal.App.4th at p. 1058; Neeble-Diamond, supra, 99 Cal.App.5th at pp. 557-558; Moreno, supra, 65 Cal.App.5th at p. 249.)

However, the Court does not find that any of the aforementioned cases allow for a prevailing defendant in a case involving both FEHA and non-FEHA claims to avoid the necessity of filing a noticed motion to obtain a costs award in the action. Indeed, a noticed motion is necessary to allow the trial court to use its discretion and to allow the trial court to allocate costs between FEHA and non-FEHA related claims. Filing a costs memorandum, alone, “amounts to a request for the clerk to award the costs a prevailing party would be entitled to as a matter of right” (Neeble-Diamond, supra, 99 Cal.App.5th at p. 557), and therefore does not allow the trial court to use discretion as to the costs award. As such, the proper procedure in this matter was for prevailing Defendant to have filed a noticed motion regarding the appellate costs and their allocation between the FEHA and non-FEHA claims to allow the Court an opportunity to utilize its discretion.

Defendant fails to provide any legal authority demonstrating the Court may find otherwise or that an appellate costs memorandum, alone, is sufficient for a trial court to award overlapping or inseparable costs in a mixed FEHA and non-FEHA lawsuit.

Furthermore, the Court finds Defendant’s request for the Court to treat its request for an allocation of a costs award in supplemental briefing to a motion to tax or strike costs as sufficient and equivalent to a noticed motion unpersuasive and legally unsupported. The Court does not find it has authority to allocate costs in the Appellate Costs Memo based on Defendant’s supplemental brief to the Motion.

Furthermore, Defendant failed to carry its burden to segregate and substantiate costs attributable solely to the non-FEHA claim. Accordingly, Defendant may not recover costs on the present record, and the Memorandum of Costs is stricken.

Accordingly, the Motion is GRANTED as to the request to strike the Appellate Costs Memo and strikes the 8/7/25 Appellate Costs Memo.

IV.
Conclusion
& Order

For the foregoing reasons, Plaintiff Jason Camp's Motion to Strike or Tax Costs and Amend Judgment Awarding Costs is GRANTED in part and DENIED in part.

The Motion's request to strike the Memorandum of Costs filed on March 26, 2026, is GRANTED. The Memorandum of Costs filed on March 26, 2026, is STRICKEN.

The Motion's request to strike the Appellate Memorandum of Costs filed on August 7, 2025, is GRANTED. The Memorandum of Costs filed on August 7, 2025, is STRICKEN.

The Motion's request to amend the judgment is DENIED.

Moving party is ordered to give notice.